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|          |                 | <p>issues raised in this motion could have been resolved without court intervention had counsel made a serious effort to meet and confer.</p> <p>Petitioner sent a single meet and confer letter after 6:00p.m. on Christmas Eve, knowing that the deadline to file the instant motion was January 2nd. It is not an abuse of discretion for the court to find that sending a single letter late in the relevant time period is not a sufficient effort to meet and confer. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 432-433.) Here, Petitioner gave Respondent less than four business days, during the busy holiday season, to respond.</p> <p>Nonetheless, Respondent acknowledges receiving the letter on 12/24/26 and offers no reason for failing to confirm an agreement to the proposed extension of time. Moreover, Respondent failed to offer any justification for the insufficiency of the initial response to requests for production.</p> <p>Based on the foregoing, the court finds that the motion was neither made nor opposed with substantial justification.</p> <p>Further, counsel should be aware that, effective 1/1/26, discovery motions must be accompanied by a declaration showing that a good faith effort to meet and confer was made "in person, by telephone, or by videoconference" to informally resolve each issue. (Code Civ. Proc. §§ 2016.040 and 2023.010(h).)</p> <p>Counsel for Petitioner shall serve notice of this ruling.</p> <p style="text-align: right;">[Motion Type]</p> |
| 01486818 | Aguirre – Trust | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b> Aguirre – Trust 01486818</p> <p><b>Calendar No:</b> 1                      <b>Date:</b> 09/16/26</p> <hr/> <p style="text-align: center;"><b>MOTION TO COMPEL FURTHER RESPONSES TO<br/>SPECIAL INTERROGATORIES (ROA 103)</b></p> <p>Petitioner Steven M. Aguirre ("Petitioner") moves to compel Respondent Martin Campbell ("Respondent") to further</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |